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U.S. Department of State Diplomacy in Action

Djibouti

Bureau of Democracy, Human Rights, and Labor

2005

March 8, 2006

Djibouti is a republic with a strong presidency and a weak legislature. It has an estimated population of 660 thousand. On April 8, President Ismail Omar Guelleh, candidate of the ruling People's Rally for Progress (RPP), won reelection; Guelleh ran unopposed amid an opposition boycott. International observers considered the election generally free and fair. The civilian authorities generally maintained control of the security forces.

The government's human rights record remained poor, and it continued to commit serious abuses; however, the government made improvements in some areas. The following human rights problems were reported:

- abridgement of citizens' rights to change their government
- abuse of prisoners and detainees
- harsh prison conditions
- official impunity
- arbitrary arrest and detention and prolonged pretrial detention
- interference with privacy rights
- restrictions on freedoms of press, assembly, and association
- use of force to disperse demonstrators and strikers
- violence and discrimination against women
- female genital mutilation (FGM)
- discrimination on the basis of ethnicity, nationality, and clan background
- restrictions on unions and harassment of union leaders

The government took steps during the year to improve human rights, including the suspension and arrest of allegedly corrupt public officials and the ratification of the Maputo Protocol outlawing FGM.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The government or its agents did not commit any politically motivated killings; however, police forcibly dispersed several demonstrations, which resulted in injuries and deaths (see section 2.b.).

The soldier responsible for killing a four-year-old child in a March 2004 automobile accident paid reparations to the child's parents during the year.

There were no developments in the July 2004 case in which four members of the gendarmerie reportedly severely beat a military pensioner, who subsequently died from his injuries. The chief of the gendarmerie refused to conduct an investigation or allow the accused to appear in court.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits such practices; however, there continued to be reports that police and gendarmes beat and physically abused prisoners and detainees.

In March police arrested and reportedly beat Warris Mouhoumed, a businesswoman who refused police orders to close her restaurant during the two-week election campaign. Police charged that patrons of her restaurant, a gathering place for members of the opposition, insulted and threatened passersby. Mouhoumed was released the following day, and her restaurant remained closed for two weeks.

Police beat protesters while dispersing a demonstration during the year (see section 2.b.).

No action was taken against the two police officers responsible for the April 2004 assault on and arrest of opposition figure Mohamed Darar Waberi.

Members of police vice squads targeted prostitutes on the streets and reportedly raped them as a precondition for their release.

Prison and Detention Center Conditions

Prison conditions were harsh, and overcrowding was a serious problem. Conditions at Nagad detention center, where foreigners were held prior to deportation, were unsanitary, and detainees often were not fed for several days before their deportation. Medical care was inadequate, and several prisoners reportedly suffered from untreated illnesses or injuries received during arrest.

In principle juveniles were held separately from adult prisoners; however, this was not always the case. Children under the age of five sometimes were allowed to stay with their mothers. Pretrial detainees usually were not held separately from convicted prisoners due to the lack of facilities.

The government granted prison access to the International Committee of the Red Cross for annual inspections.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention; however, the government did not respect these prohibitions.

Role of the Police and Security Apparatus

Security forces include the National Police Force (FNP), under the Ministry of Interior, the army and Gendarmerie Nationale, under the Ministry of Defense, and an elite Republican Guard, under the presidency. The FNP is responsible for internal security, border control, and prisons. The Gendarmerie Nationale is responsible for external security but also has some domestic security responsibilities. The Republican Guard is responsible for the protection of the president.

Police were generally effective; however, there were reports of corruption, particularly in the lower ranks, where wages were low. Official impunity was a problem.

Arrest and Detention

The law requires arrest warrants and stipulates that the government may not detain a person beyond 48 hours without an examining magistrate's formal charge; however, the law was not always enforced in practice. Detainees may be held another 24 hours with the prior approval of the public prosecutor. All persons, including those accused of political or national security offenses, must be tried within eight months of arraignment. The law also provides for bail and expeditious trial; however, police occasionally disregarded these procedures. Detainees have the right to prompt access to an attorney of their choice; in criminal cases, the state provides attorneys for detainees without legal representation.

Security forces arbitrarily arrested and detained numerous persons, some of whom were beaten (see section 1.c.). Security forces also arrested demonstrators and strikers during the year (see sections 2.b. and 6.b.).

Unlike in the previous year, there were no reports of persons having to pay bribes to be released during roundups of illegal foreigners.

On March 19, Houssein Robleh Darar, Awad Robleh Waiss, and Abdi Osman Nour, members of the opposition Djiboutian Union for Justice, were arrested and detained for being "threats to the population" and for "degradation of the wellbeing of others and violence." The government claimed the arrests were to prevent the three men from carrying out threats to plant bombs and destroy property; however, opposition journals claimed the three were arrested because of their opposition to the government. In August the court dismissed all charges against the men, who were subsequently released from Gabode Prison.

There were no other reports of political detainees at year's end.

Lengthy pretrial detention was a problem; however, no statistics were available.

Amnesty

On June 27, the government released or reduced sentences of prisoners as part of an Independence Day amnesty. Prisoners serving one year or less were released; prisoners with longer terms received reductions in their sentences. The amnesty excluded drug dealers, those held for misuse of public funds, those that committed violence against their families, and rapists.

e. Denial of Fair Public Trial

The law provides for an independent judiciary; however, in practice the judiciary was not independent of the executive. Constitutional provisions for a fair trial were not universally respected, even in nonpolitical cases. The judiciary was subject to inefficiency and corruption.

The judiciary, based on the French Napoleonic code, was composed of a lower court, an appeals court, and a Supreme Court. The Supreme Court may overrule lower court decisions. Magistrates are appointed for life terms. The constitutional council rules on the constitutionality of laws, including those related to the protection of human rights and civil liberties; however, its rulings did not always protect these rights.

The legal system is based on legislation and executive decrees, French codified law adopted at independence, Islamic law (*Shari'a*), and nomadic traditions. Urban crime was dealt with in the regular courts in accordance with French-inspired law and judicial practice. Civil actions may be brought in regular or traditional courts. In 2004 the government published and began implementing the 2002 Family Code, which replaces *Shari'a* in governing the majority of laws pertaining to family and personal matters, including marriage, divorce, child custody, and inheritance matters. Issues that fall under the Family Code are brought to civil court, and both parties can present their case to a judge; the court then tries to reach a reconciliation agreement between the two parties. If no solution can be found, the judge decides the case based on the appropriate statutes in the Family Code.

Trial Procedures

Trials generally were public, except in politically sensitive cases when security measures effectively prevented public access. Legal counsel was supposed to be available to the indigent in criminal and civil matters, but defendants often did not have legal representation. The law states that the accused is innocent until proven guilty; however, defendants were not always presumed innocent. A presiding judge and two accompanying judges heard court cases. The latter received assistance from two lay assessors who were not members of the bench but who were considered to possess sufficient legal knowledge to comprehend court proceedings. The government chose lay assessors from the public, but reports indicated that political and ethnic affiliations played a role in the selection.

Traditional law often applied in conflict resolution and victim compensation. For example, traditional law often stipulated that a blood price be paid to the victim's clan for crimes such as murder and rape.

Political Prisoners

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions; however, the government did not respect these prohibitions in practice. The law requires that authorities obtain a warrant before conducting searches on private property, but in practice the government did not always obtain such warrants. The government reportedly monitored and sometimes disrupted the communications of government opponents by cutting their telephone or electricity service. Police reportedly frequently followed persons who attended opposition rallies.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press; however, the government restricted these rights in practice. The government intimidated journalists into practicing self-censorship.

The law prohibits the dissemination of false information and regulates the publication of newspapers. The government owned the principal newspaper, *La Nation*, which published three times a week. In addition, each registered political party is permitted to publish a public journal. There were several opposition-run weekly and monthly publications that circulated freely and openly criticized the government.

The government also owned the radio and television stations. The official media generally did not criticize government leaders and government policy. Radio-Television Djibouti, the official government station, broadcast 24 hours a day in four languages on the radio. Foreign media also broadcast throughout the country.

The government used several tactics to intimidate journalists, including surveillance and the removal from newsstands of publications that criticized the government; however, unlike in previous years, no publications were closed.

Unlike in the previous year, no persons were arrested for libel, nor were any journalists detained.

There were no government restrictions on the Internet.

The government generally did not restrict academic freedom, and teachers could speak and conduct research without restriction, provided that they did not violate sedition laws. However, the government continued to block the salaries of teachers involved in strike activity (see section 6.b.).

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

Although the law provides for freedom of assembly, the government limited this right in practice. The Ministry of Interior requires permits for peaceful assembly and monitors opposition activities. Some opposition leaders effectively practiced self-censorship and refrained from organizing popular demonstrations to avoid provoking a government crackdown.

Police forcibly dispersed demonstrations during the year, which resulted in one death and several injuries. For example, on April 8, police fired tear gas into a crowd of demonstrators assembled in front of opposition headquarters, resulting in injuries; several persons were briefly detained. Police, who denied there were any injuries, charged that the protesters had not received permission and that only those refusing to disperse were arrested.

On October 24, police fired shots into a violent crowd of approximately 300 protestors after the demonstrators dragged several police officers into the crowd; one demonstrator was killed, and another was seriously injured. Seven police officers were injured from rocks thrown by the crowd. An investigation into the incident was ongoing at year's end.

On November 30, the last day of a weeklong operation to remove illegal housing in the Arhiba II neighborhood of Djibouti, police fired on residents protesting the removal of their homes; 4 persons were killed, and approximately 10 were injured. According to the Interior Ministry, 15 police officers also were injured during the confrontation.

Police forcibly dispersed violent labor demonstrations during the year (see section 6.b.).

Freedom of Association

The law provides for freedom of association provided that certain legal requirements are met; however, the government restricted this right in practice. The government required political parties and nonpolitical associations to register. The government continued to harass and intimidate members of opposition groups (see section 1.f.).

c. Freedom of Religion

The constitution, while declaring Islam to be the state religion, provides for freedom of religion, and the government generally respected this right in practice. The government did not sanction those who ignored Islamic teachings or practiced other faiths. More than 99 percent of the population was Sunni Muslim.

The government requires that religious groups register. Unlike in previous years, there were no reports that Baha'i groups were denied the right to register; however, they did not attempt to register during the year because they believed the government would not allow their registration.

There is no legal prohibition against proselytizing; however, it was discouraged.

Societal Abuses and Discrimination

There was no known Jewish community, and there were no reports of anti-Semitic acts.

For a more detailed discussion, see the 2005 *International Religious Freedom Report* ([//2009-2017.state.gov/j/drl/rls/irf/2005/](https://2009-2017.state.gov/j/drl/rls/irf/2005/)).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights; however, the government at times limited them in practice.

The law prohibits forced exile, and the government did not use it.

Protection of Refugees

The law provides for the granting of asylum or refugee status in accordance with the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol. In practice the government provided some protection against *refoulement*, the return of persons to a country where they feared protection. However, there were unconfirmed reports during the year of the forced return of persons to a country where they feared persecution, specifically Ethiopia and Eritrea. The government did not routinely grant refugee or asylum status, and the government did not accept refugees for resettlement during the year. The government cooperated with the UN High Commissioner for Refugees (UNHCR) in providing assistance to refugees and asylum seekers.

On June 9, three Ethiopian Air Force personnel landed an Ethiopian military helicopter at Ambouli International Airport; two of the three reportedly requested asylum. The government contacted the Ethiopian military, which sent a delegation that met with the three and reportedly convinced them to return to Ethiopia the following day. On June 15, Amnesty International and the UNHCR, which were not granted access to the men, issued a press release noting that the crewmembers could face treason charges and the death penalty upon their return to Ethiopia. No information on the treatment of the crewmembers upon arrival in Ethiopia was available. At year's end family members told the local press that the pilots were being held incommunicado at an airforce base.

In June 2004 the government processed approximately eight thousand requests for asylum from undocumented foreigners who claimed fear of persecution during the 2003 mass expulsion of illegal immigrants. The government granted *prima facie* refugee status (temporary refugee status which can be revoked once a case is investigated) to more than 4 thousand southern Somalis and 100 Ethiopians, all of whom were transferred to either Ali-Adde or Hol-Hol refugee camps.

Unlike in the previous year, there were no reports of the rape of refugee women.

During the year the government continued to round up and deport undocumented foreigners--primarily from Ethiopia, Somalia, and Yemen; there were no reports of abuses during these roundups. In 2003 more than 80 thousand undocumented foreigners were forced to leave the country, and there were numerous reports of deaths resulting from exposure and overcrowding.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens with the right to change their government; however, the government limited this right in practice.

Elections and Political Participation

On April 8, President Guelleh of the RPP, which has ruled the country since independence, won reelection with 95 percent of the vote; Guelleh ran unopposed. The opposition boycotted the election, charging that the government ignored its demands for electoral reform. International observers considered the election generally free and fair; however, there were irregularities, including double voting, the presence of campaigners in and around polling stations, and the absence of blank ballots for those who did not want to vote for President Guelleh.

There were 7 women in the 65-seat legislature; these seats were reserved for women by presidential decree. The country's first female parliament members took office when the Union for the Presidential Majority (UMP) legislature convened in 2003. In July the Ministry of Foreign Affairs promoted Hawa Ahmed Youssouf to minister of international cooperation. Aicha Mohamed Robleh replaced Youssouf as minister of state for the promotion of women, family, and social affairs. Khadija Abeba is president of the Supreme Court and the highest-ranking female official.

There were 9 members of minorities--non-Issa Somali clans (Issaks, Gadaboursis, and Darood) and Arabs--in the 65-seat legislature. There were 3 members of minorities in the 20-seat cabinet. The president's subclan, the Issa Mamassans, wielded disproportionate power in affairs of state. Afars held a number of senior ministerial posts, but they were not well represented at lower levels. Somali clans other than the Issa, and citizens of Yemeni origin, were limited unofficially to one ministerial post each. There also were informal limits on the number of seats for each group to preserve balance in the parliament.

Government Corruption and Transparency

During the year the government took significant steps to combat corruption, which was a problem. In July the Ministry of Finance arrested two officials suspected of corruption and suspended several others while their cases were under investigation. The two officials who were arrested remained in Gabode Prison awaiting trial at year's end. The director of Gabode Prison also was arrested for alleged corruption and was awaiting trial in the prison he directed at year's end.

There were no laws to provide public access to government information, and it was unclear whether persons would be granted such access if they asked. During the year the Chamber of Public Accounts and Fiscal Discipline, a public expenditures audit board established to fight corruption and promote transparency, released the results of its second annual report on government expenditures to the public.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A few domestic human rights groups generally operated without serious government restriction, conducting limited investigations and sometimes publishing their findings on human rights cases. Government officials generally disregarded their views. The local human rights group LDDH operated without government interference during the year. The Union of Djiboutian Women and the Djiboutian Association for the Promotion of the Family promoted the rights of women and children.

The International Committee of the Red Cross (ICRC) maintained a small office that was staffed with locally hired personnel. The ICRC regional representative, who was based in Nairobi, visited the country during the year.

There was a government ombudsman, who also served as a legislator in the parliament and whose specific responsibilities included mediation between governmental and nongovernmental organizations (NGOs). According to the 2004 ombudsman report, however, less than half the cases submitted were successfully mediated.

In May 2004 the government held a national forum on human rights to solicit public views and discuss possible human rights legislation; however, the results of the forum had not been released by year's end.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The law prohibits discrimination on the basis of language, race, or sex; however, discrimination against women and ethnic minorities persisted. The government's enforcement of laws to protect women and children was ineffective.

Women

Domestic violence against women existed, but few cases were reported. The law prohibits "torture and barbaric acts against a spouse," which are punishable by 20 years' imprisonment. Violence against women generally was addressed within the family or clan structure rather than in the courts. Police rarely intervened in domestic violence incidents, and the media reported only the most extreme examples, such as murder. The law includes sentences of up to 20 years' imprisonment for rapists. The number of such cases prosecuted during the year was unknown. There is no law against spousal rape.

An estimated 98 percent of females in the country have undergone FGM, which traditionally was performed on girls between the ages of 7 and 10. The efforts of the Union of Djiboutian Women and other groups to educate women against the practice were having some effect in the capital city; however, infibulation, the most extreme form of FGM, continued to be widely practiced in rural areas. The law states that "violence causing genital mutilation" is punishable by 5 years' imprisonment and a fine of more than \$5,650 (1 million DF); the government had not yet convicted anyone under this statute.

During the year the government launched a campaign against FGM, which culminated with the country's ratification of the Maputo Protocol outlawing FGM. The government also hosted a February subregional conference to address Islam's position regarding FGM, and government representatives from 10 African countries and high-ranking Islamic authorities from throughout the region attended. In a written statement distributed to conference participants, President Guelleh called for an end to FGM, noting, "We no longer want it practiced by Arabs, nor by Somalis, nor by Afars, nor in any other form...no female circumcision is justifiable."

Prostitution is illegal, but it was a significant problem. In general there were two categories of prostitutes: those with apartments and those on the streets. The first group was largely tolerated and catered to the foreign (particularly military) community, while police usually targeted those on the streets. Refugees and girls from poor families were at greater risk of becoming street prostitutes.

The law does not prohibit sexual harassment, and it was a problem.

Women legally possess full civil rights; however, custom and traditional societal discrimination in education have resulted in a secondary role for women in public life and fewer employment opportunities. Women largely were confined to trade and secretarial fields. In 2004 the government published and began implementing the 2002 Family Code, which replaces *Shari'a* in governing the majority of laws pertaining to family and personal matters (see section 1.e.). Male children inherited larger percentages of estates than did female children. The few women who were educated increasingly turned to the regular courts to defend their interests.

Children

The government devoted almost no public funds to the advancement of children's rights and welfare. A few charitable organizations worked with children.

Primary education was compulsory; however, the government did not monitor compliance. The highest level of education reached by most students was completion of primary school. The government provided tuition-free public education, but extra expenses, such as transportation, book fees, and chalk, could be prohibitive to poorer families. School facilities continued to be inadequate. Teacher salaries continued to be in arrears, and a large percentage of highly qualified teachers have left the profession (see section 6.e.). Approximately 20 percent of children who started secondary school completed their education.

The educational system did not discriminate against girls, but societal attitudes resulted in differences in the attendance and treatment of girls in school. According to the Ministry of Education, 50 percent of girls were enrolled in primary school during the year, compared with 60 percent of boys; during the previous year primary school enrollment rates were 42 percent for girls and 58 percent for boys. In rural areas, limited access to schools, a shortage of educational materials, and cultural attitudes led to significantly lower enrollment and greater disparities in enrollment between boys and girls.

Child abuse existed; however, the government has not used existing provisions of the law to deal seriously with child abuse, and punishments generally were light. For example, perpetrators of rape or abuse generally were fined an amount sufficient to cover the child's medical care.

FGM was performed on as many as 98 percent of young girls (see section 5, Women).

Child marriage occurred in rural areas and among some tribal groups; however, it was not considered a significant problem. The government worked together with several NGOs to increase school enrollment for girls, in part to reduce the likelihood that parents would force their young girls into marriage. The Ministry for the Promotion of Women, Family, and Social Affairs also worked actively with women's groups throughout the country to protect the rights of girls, including the right to decide when and whom to marry.

Child prostitution existed. Some children that immigrated to the country for economic reasons engaged in prostitution to survive. There was no known system of organized pimps who exploited children; however, older children sometimes acted as "protectors" and took a portion of other children's earnings as a fee.

Child labor existed (see section 6.d.).

Trafficking in Persons

The law does not prohibit trafficking in persons. Although there were no known reports of persons being trafficked to, from, or within the country, observers believed the country to be a destination for individuals trafficked from Ethiopia and Somalia and a country of transit to the Middle East. Trafficking could be prosecuted under various sections of the law, including "exploitation of the weakness or ignorance of persons" or "exerting pressure on a person so that the person engages in prostitution." On February 8, the government ratified the UN Convention Against Corruption and the UN Convention Against Transnational Organized Crime, including antitrafficking protocols.

Persons with Disabilities

Although persons with disabilities have access to education and public health facilities, there is no specific law that addresses the needs of persons with disabilities, and there are no laws or regulations that prevent job discrimination against persons with disabilities. There was societal discrimination against persons with disabilities. The government did not mandate accessibility to buildings or government services for persons with disabilities.

National/Racial/Ethnic Minorities

The government continued to discriminate against citizens on the basis of ethnicity in employment and job advancement. Somali Issas were the majority ethnic group and controlled the ruling party, the civil and security services, and the military forces. Discrimination based on ethnicity and clan affiliation limited the role of members of minority groups and clans in government and politics.

Section 6 Worker Rights

a. The Right of Association

The law provides for the right to join unions; however, the government restricted these rights. Under the labor code, a union must have government sanction to exist. The government continued to suppress independent, representative unions by firing their leaders, preventing them from holding congresses, and creating government-sponsored shadow unions to replace them.

The law prohibits antiunion discrimination, and employers found guilty of discrimination were required to reinstate workers fired for union activities; however, the government neither enforced nor complied with the law.

b. The Right to Organize and Bargain Collectively

Although the law allows unions to conduct their activities without interference, the government did not protect this right in practice. Collective bargaining did not occur.

There were no special laws or exemptions from regular labor laws in the export processing zone.

Relations between employers and workers were informal and paternalistic. The government could and did select labor representatives. Employers generally established wage rates based on labor ministry guidelines. In disputes over wages or health and safety problems, the Ministry of Labor encouraged direct resolution by labor representatives and employers. Workers or employers may request formal administrative hearings before the ministry's inspection service. Critics claimed that inspection and dispute settlement suffered from poor enforcement due to their low priority and inadequate funding.

The law provides for the right to strike and requires representatives of employees who plan to strike to notify the Ministry of Interior 48 hours in advance; workers exercised this right in practice.

The law confers upon the president broad powers to requisition public servants who are considered indispensable to the operation of essential public services.

During the year the government retaliated against strikers. For example, on May 17, opposition publications reported that Hassan Cher Hared, a postal service agent and vice president of the Djiboutian Workers' Union, was suspended for eight days and subsequently dismissed from the postal service for "recidivism." Hared had criticized postal service management during a May 1 demonstration to celebrate International Labor Day. Postal service management claimed the dismissal resulted from Hared's failure to return to work after his suspension; however, some observers charged that the dismissal resulted from Hared's union activities.

After the September 14 port strikes, the Direction of the Port of Djibouti (the direction) dismissed 11 members of the Port Workers Union (UTP) for failing to properly follow regulations for declaring a strike and arrested them for "public disturbance" and "incitement to rebellion." On October 2, the National Prosecutor found the 11 not guilty and released them. On September 15, the direction dismissed 25 union members, allegedly for poor work records prior to the September 14 strike. On September 24, after a breakdown in mediation, the direction detained 167 strikers for 48 hours.

The government continued to block the salary of Kamil Hassan, a schoolteacher who led a teacher's strike in 1997; however, Hassan was allowed to return to teaching during the year.

c. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, including by children, and there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits all labor by children under the age of 14, but the government did not always enforce this prohibition effectively, and child labor, although not common, existed. Children generally were not employed in hazardous work but worked in family-owned businesses, such as restaurants and small shops, at all hours of the day and night. A shortage of

labor inspectors reduced the likelihood that reports of child labor would be investigated.

e. Acceptable Conditions of Work

Only a small minority of the population was engaged in wage employment. The government administratively sets minimum wage rates according to occupational categories, and the Ministry of Labor is charged with enforcement. The monthly wage rate for unskilled labor, set in 1976, was approximately \$125 (22 thousand DF); however, it was not enforced in practice. The national minimum wage did not provide a decent standard of living for a worker and family. The government still owed three months of salary arrears from 1995 and 1997 to teachers, security forces, and civil servants.

By law, the workweek was 40 hours, normally spread over 6 days. The law mandates a weekly rest period of 24 consecutive hours and the provision of overtime pay. The Ministry of Labor is responsible for enforcing occupational health and safety standards, wages, and work hours. Because enforcement was ineffective, workers sometimes faced hazardous working conditions. Workers rarely protested, mainly due to fear that others willing to accept the risks would replace them. There were no laws or regulations permitting workers to refuse to carry out dangerous work assignments without jeopardizing their continued employment.

Only legal foreign workers were protected under the law.

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